JOHN KUNDEYA
and
HWEDZA RURAL DISTRICT COUNCIL

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE, 11, 12 and 26 May 2026

Civil Trial

G. Ranganayi, for the plaintiff
C. Warara, for the defendant

MAMBARA J:

Introduction

The plaintiff's claim is founded on malicious arrest and prosecution. The central question in this whole matter is not whether the police, upon receiving the report and supporting papers from the defendant, could form a suspicion. It is whether this defendant, knowing the true character of the dispute and the state of the labour proceedings, was justified in setting the criminal law in motion against the plaintiff at all. A false-arrest claim focuses on the deprivation of liberty. A malicious-prosecution claim focuses on wrongful institution of criminal process, absence of reasonable and probable cause, and malice.

The Plaintiff thus claims:

a) Payment of US$160 000.00 in general damages for malicious prosecution.

b) Interest at the rate of 5% per annum from date of issue of summons to date of payment in full.

c) Costs of suit on legal practitioner and client scale.

In Zimbabwe, the essentials of malicious prosecution are settled. The plaintiff must prove that the defendant instituted or instigated the prosecution, that the prosecution terminated in the plaintiff's favour, that there was no reasonable and probable cause, and that the defendant acted with *malice or animus iniuriandi*. Zimbabwean courts have repeatedly

drawn on *Bande* v *Muchinguri* 1999 (1) ZLR 476 (H), *Luke Davies* v *Premier Finance Group Ltd* HH 235-10 (High Court, 2010) at 10–11, and the *Supreme Court's reasoning in Econet Wireless (Pvt) Ltd* v *Sanangura* 2013 (1) ZLR 401 (S) at 407F–409B. *South African law states the same essentials in Minister for Justice and Constitutional Development and Others* v *Moleko* (131/07) [2008] ZASCA 43; [2008] 3 All SA 47 (SCA); 2009 (2) SACR 585 (SCA), especially paras [8], [11] and [20].

The authority most directly in point on the South African side is Moleko, where the Supreme Court of Appeal set out the elements of the claim and explained that the police are not instigators if they do no more than make:

"a fair and honest statement of the relevant facts"

The same judgment explains that reasonable and probable cause means:

"an honest belief founded on reasonable grounds"

Brief factual background

The plaintiff was the Chief Executive Officer of the defendant council. His labour dispute with the council arose from constructive dismissal, unilateral salary deductions, unpaid salary-related benefits, and, critically for present purposes, the balance of free mileage allowances. The labour proceedings were not collateral or peripheral. They were directed at the same underlying subject matter later dressed up as criminal fraud.

The record shows that the Marondera Labour Officer ruled that the council was liable to pay the plaintiff for unlawful salary deductions, the balance of free mileage allowances, and settled sums for leave days, salary arrears, and bonus-related items. The Labour Officer also held that the plaintiff had been constructively dismissed and directed further quantification. The Labour Court, per Hove J, later confirmed the rulings and held that the deductions and withheld free mileage were supported by the evidence and that the certificate of settlement bound the council.

The record also shows that the council had itself recognised the plaintiff's free-mileage benefit. Resolution 184 granted the CEO 1,000 km per month as free mileage. On 9 March 2018, while the plaintiff was on forced leave, the council chairperson wrote that during the period of use of a private vehicle the council would pay the plaintiff at a dry rate of 35 cents per kilometre under Resolution 459, amounting to $350 per month for the 1,000

km condition of service. In the criminal trial, Jeremiah Bako accepted that the 1,000 km had been converted to $350.00, while the finance evidence showed that payment requisitions had passed through Human Resources and Finance before authorisation in the ordinary course.

The internal audit report of 30 August 2018 did not decide a crime. It queried the plaintiff's free-mileage claim, recommended recovery of what it considered undue benefit from terminal benefits, recommended that the balance of the claim not be paid, and called for supporting documents in relation to an already-paid portion. That was an internal governance and accounting query. It was not a judicial finding of fraud. The council minutes of 11 April 2018 also show that Resolution 184 was only later rescinded, after controversy had already arisen and in the plaintiff's absence.

The significance of the labour record becomes sharper when one turns to the criminal proceedings. In the transcript, acting CEO Jeremiah Bako accepted under cross-examination that the police report came after the plaintiff had launched his labour claim, that the chairperson was aware of that claim, that the letter of 9 March 2018 had converted the 1,000 km into a $350 monthly figure, and that the audit extract taken to the police came from council. Yet, when confronted with the labour documents and the ruling in favour of the plaintiff on free mileage, Bako professed not to know the outcome, gave "no comment", and declined to engage the effect of the labour ruling. Chairman Phillip Negombwe likewise disclaimed knowledge of the labour dispute and labour ruling in circumstances where the council itself was party to those proceedings.

The plaintiff was ultimately acquitted in the criminal case. The issue, therefore, is whether the defendant's resort to the police was a bona fide attempt to bring an offender to justice, or a stratagem to avoid or neutralise a labour liability.

The parties' cases

The plaintiff's case, as emerges from his evidence, the criminal record, and his closing submissions, may be distilled thus. Resolution 184 conferred a free-mileage benefit. The council later operationalised that benefit through the chairperson's letter of 9 March 2018 at 35 cents per kilometre, amounting to $350 per month. The plaintiff says he did not secretly manipulate payroll. He raised a claim; Human Resources and Finance computed and processed it; and the very council now complaining knew of the entitlement issue long before the criminal report. More than that, he argues that by the time the criminal matter was

prosecuted, the free-mileage issue had already been ventilated before the Labour Officer and decided in his favour. The defendant's witnesses, he says, deliberately concealed that fact or feigned ignorance of it because the real purpose of the criminal complaint was to defeat or dilute his labour claim, to paint a civil and labour dispute as fraud, and to break him by process rather than by law.

The defendant's case, reflected in its summary of evidence and closing submissions, is different. It says that the issue began with an audit report which identified a free-mileage claim amounting to thousands of dollars without supporting proof and described the claim as fraudulent or unjustified. It argues that Resolution 184 entitled the plaintiff only to free mileage and not to cash. On its case, Resolution 459 concerned employees who used private vehicles on council business and could not lawfully be used retrospectively to convert an old benefit into cash. The defendant says it did no more than pass on the audit findings and that the police acted independently. It emphasises that the plaintiff's acquittal does not, by itself, prove malice.

Those two cases illuminate the true controversy. This is not a case in which the court must decide whether the police's initial suspicion was irrational. Nor is it a case in which a complainant simply gave a candid, balanced, and complete account to the police and then stepped aside. The issue is whether the report was candid and bona fide, or selective and weaponised.

The governing law

Zimbabwean law treats malicious prosecution as a form of intentional infringement of dignity, reputation and, where arrest follows, liberty. In *Econet Wireless (Pvt) Ltd* v *Sanangura* 2013 (1) ZLR 401 (S) at 407F–409B, drawing on *Luke Davies* v *Premier Finance Group Ltd* HH 235-10 at 10–11, the Supreme Court summarised the requirements as instigation by the defendant, favourable termination, absence of reasonable and probable cause, and malice. It also reaffirmed the proposition from *Bande* v *Muchinguri supra* that merely giving honest information to the police does not amount to instigation; there must be something more, such as laying the charge in substance or overbearing the police to act where they otherwise might not.

"According to Feltoe, A Guide to the Zimbabwean Law of Delict (2006) the delict of malicious prosecution is committed:

'When D maliciously and without reasonable and probable cause brings legal proceedings against another. Every citizen has a right to use legal proceedings legitimately for the purpose of upholding and protecting his rights. He or she does not, however, have the right to abuse the legal process for the purpose of upholding and furthering his or her rights, but instead solely for the purpose of causing harm to P because he or she has malice towards P.

> As regards malicious prosecution, the case of Bande v Muchinguri (1999) points out that the term "malice" did not mean spite or ill will or a spirit of negligence, it had a wider connotation. It included any malice different [from] that which is proper for the institution of criminal proceedings which is to bring an offender to justice …'"

That passage is important in two respects. First, it makes plain that malicious prosecution is not about punishing mere error. Secondly, it explains that "malice" in this context means an improper motive other than the proper object of criminal proceedings, namely bringing an offender to justice.

South African law states the same position in Moleko *supra*. The Supreme Court of Appeal held that malicious prosecution requires proof that the defendant set the law in motion, lacked reasonable and probable cause, acted with malice or animus iniuriandi, and that the prosecution failed. It defined reasonable and probable cause as an honest belief, founded on reasonable grounds, that the institution of proceedings is justified; the standard contains both subjective and objective elements. Moleko also reaffirmed, with reference to *Prinsloo & Another* v *Newman* 1975 (1) SA 481 (A) at 492C–F and 495A, that police officers or complainants who merely provide a fair and honest statement of facts are not, without more, instigators.

The distinction between malicious arrest and malicious prosecution must be kept clean. A false or unlawful arrest claim looks at whether liberty was lawfully curtailed. A malicious prosecution claim looks at whether criminal process was wrongfully set in motion and persisted in. United States law makes the same conceptual distinction in *Wallace* v *Kato*, 549 U.S. 384 (2007), and *Thompson* v *Clark*, 596 U.S. 36 (2022), the latter holding that favourable termination means the prosecution ended without a conviction. Those are not binding in Zimbabwe, but they are analytically consistent with the Roman-Dutch distinction.

Commonwealth authority points in the same direction. In *Mohamed Amin* v *Jogendra Kumar Bannerjee* [1947] AC 322 (PC), the Privy Council treated instigation, favourable termination, absence of reasonable and probable cause, and malice as central elements. Later Commonwealth decisions, including *Miazga* v *Kvello Estate*, 2009 SCC 51, [2009] 3 SCR 339, and *A* v *State of New South Wales* [2007] HCA 10; (2007) 230 CLR 500, continue to

illustrate the relationship between honest belief, improper purpose, and liability for misuse of criminal process.

Analysis

I turn to the facts.

The first conclusion is that the defendant did more than simply passively answer police questions. The council was the moving force behind the complaint. Its own summary of evidence says the audit findings led it to lay fraud charges. In the criminal trial, Bako accepted that the report to the police came after the plaintiff had launched his labour claim and that the audit extract given to police came from council. Negombwe and Bako were not detached observers. They were the institutional voice of the defendant. On these facts, the defendant set the law in motion. This satisfies the first requirement.

The second requirement, favourable termination, is also satisfied. The plaintiff was acquitted in the criminal case. In Zimbabwean law and comparative law alike, that is sufficient favourable termination for this kind of claim.

The real contest lies in the third and fourth requirements: absence of reasonable and probable cause and malice.

On the evidence before me, the audit report did give the police something on which they could act. It queried a claim, raised governance concerns, and recommended recovery or non-payment. I therefore accept, and expressly state, that the police could form a reasonable suspicion from the material placed before them. But that does not conclude the matter in the defendant's favour. The test for the complainant is not whether the police, shown only the inculpatory papers, could be moved to suspect. The test is whether the complainant itself honestly and reasonably believed that the plaintiff was probably guilty of fraud, having regard to the whole state of affairs known to it. Moleko and Econet make it plain that the enquiry contains both subjective and objective elements.

In my view, the defendant could not honestly and reasonably hold such a belief once the full picture is restored.

First, the issue of free mileage was not born in the criminal docket. It arose from the plaintiff's conditions of service and Council Resolution 184. Secondly, the council's own chairperson's letter of 9 March 2018 converted the 1,000 km entitlement into a monetary rate of 35 cents per kilometre for a monthly 1,000 km condition of service. Thirdly, the money

paid was not sneaked out of the council coffers through forged documents; it was processed by Human Resources and Finance in the ordinary chain. Fourthly, the plaintiff had already invoked the labour machinery against the council over, among other things, the balance of free-mileage allowances. Fifthly, the first labour ruling awarded him the balance of those allowances, and Hove J later held that the free-mileage claim was supported by the evidence and that the settlement certificate bound the council. These matters destroy the notion that the defendant could still, in good faith, treat the issue as straightforward fraud.

What turns the scale decisively is the conduct of the defendant's witnesses after the labour ruling.

The same council which was party to the labour proceedings had its witnesses profess ignorance of the labour hearing, the labour documents, and the labour ruling. Negombwe said he was unaware of the labour dispute. Bako accepted that the report to police followed the labour claim, that the chairperson was aware of the claim, and that the 1,000 km had been converted to $350, yet when shown the labour documents and asked about the labour outcome, he disclaimed knowledge or gave "no comment." This was not the conduct of a candid complainant assisting the criminal courts to do justice. It was the conduct of a litigant trying to

report itself does not rescue hold together a criminal narrative that was collapsing under the weight of the labour record.

The audit the defendant. It was an internal audit. It queried the claim, recommended recovery from terminal benefits, and requested supporting documents. It did not purport to adjudicate the legal construction of the council resolutions. Still less did it nullify the council's own earlier conduct or the labour process. Once the labour machinery had been seized of the same benefit dispute, and particularly once the Labour Officer had ruled, the defendant could not honestly frame the very same issue as simple criminal fraud without full and fair disclosure of those facts. Selective presentation of an audit exception to the police, coupled with suppression or feigned ignorance of the labour rulings, is precisely the kind of conduct that takes a case out of the protected zone of a bona fide complaint and places it in the realm of malicious prosecution.

I therefore find that the defendant lacked reasonable and probable cause in the relevant legal sense. To be clear, that finding is made from the defendant's standpoint as complainant and instigator, not from the police's standpoint as arresting authority. The police

could suspect. The defendant could not, with the full institutional knowledge in its possession, honestly believe in fraud as the proper characterisation of the dispute.

On malice, Zimbabwean law does not demand spite or personal hatred. It is enough if the criminal process was used for a motive other than bringing an offender to justice. *Bande* v *Muchinguri* as taken up in Econet, and Moleko through the language of *animus iniuriandi*, make that plain. The inference here is irresistible. The report followed the plaintiff's labour claim. The subject matter of the report was the very subject matter before the Labour Officer. The defendant's own witnesses shielded themselves with studied ignorance when the labour outcome undermined the criminal narrative. The council had already partly acknowledged liability through the settlement certificate and had already operationalised the benefit through its own letter and internal processing. There was, after the labour ruling, no genuine unresolved criminal question left. There remained only an institutional desire not to pay, or at least to pressure the plaintiff into submission by the terror and indignity of criminal prosecution. That is malice in law.

I accordingly conclude that the defendant is liable for malicious prosecution.

As to malicious arrest, I add this. In many cases, if the police independently decide to arrest on facts fairly and candidly presented, the complainant will not be liable for the arrest even if the prosecution later fails. But where, as here, the defendant is not merely a truthful informant but an active instigator who furnishes a skewed or incomplete picture, presses a criminal characterisation of what it knows to be a labour dispute, and withholds material exculpatory context, it may be held liable for the arrest that foreseeably flows from that report. Zimbabwean authority on instigation and South African authority in Prinsloo, Moleko, and related cases are consistent with that position. I therefore hold that the defendant also maliciously caused the plaintiff's arrest.

Quantum

Quantum is always the least exact part of these cases, but it is not unguided. In Zimbabwe, the Supreme Court in *Minister of Home Affairs* v *Bangajena* 2000(1) ZLR 306 (S) emphasized that deprivation of liberty is a grave infringement and that damages must reflect the seriousness of interference with personal liberty. In Econet, the trial court had awarded US$20,000 for malicious prosecution before the Supreme Court reversed on liability. In *Nherera* v *Shah* 2015 (2) ZLR 455 (H), the High Court awarded US$30,000 for

malicious prosecution and US$100,000 for malicious arrest and detention where the false report led to very serious consequences, including prolonged loss of liberty. Those awards show both the seriousness with which Zimbabwean courts treat dishonest recourse to criminal process and the need to calibrate awards to the actual severity of the arrest and detention.

South African awards, though in rand and within a different social setting, are still useful as relative guides. In *Tyulu* v *Minister of Safety and Security and Another* (393/08) [2009] ZASCA 55; 2009 (5) SA 85 (SCA), a magistrate unlawfully arrested and detained for a very short period received R15,000. In Minister of *Safety and Security* v *Seymour* (295/05) [2006] ZASCA 71; [2007] 1 All SA 558 (SCA); 2006 (6) SA 320 (SCA), five days' unlawful detention attracted R90,000. In *De Klerk* v *Minister of Police* [2019] ZACC 32; 2020 (1) SACR 1 (CC), decided 22 August 2019, the Constitutional Court upheld police liability for the full detention period after unlawful arrest.

The caution in Seymour remains apt:

"Money can never be more than a crude solatium"

The comparative lesson is straightforward. Awards rise sharply with prolonged incarceration, humiliating conditions, and grave reputational harm. They are lower where detention is brief and the main injury lies in the affront to dignity and being put through the criminal process. Seymour also warns against excessive reliance on earlier awards and reminds courts that prior cases are guides, not tariffs and the court must also guard against trivialisation of liberty and against extravagant enrichment.

Applying those principles here, I would not place this case anywhere near Nherera. There is nothing on record showing prolonged incarceration of the kind seen there. Nor is this a mere Tyulu matter of a short wrongful arrest with no wider abuse of process. The plaintiff here was a former chief executive officer. The dispute concerned his integrity in relation to public funds. He was prosecuted in a setting where the same defendant knew the issue had already been cast as, and was being adjudicated as, a labour entitlement dispute. The misuse of criminal process was therefore particularly corrosive of reputation and dignity. The arrest component, however, must remain comparatively restrained because the police did act on

papers containing enough to found suspicion and the plaintiff was not detained for a long time in degrading conditions. In his own words, he was detained for five hours.

Doing the best I can on the present record, and bearing in mind Zimbabwean awards, South African comparative practice, the plaintiff's standing, the malicious persistence of the defendant, and the absence of clear proof of lengthy incarceration, I would assess damages as follows:

US$5,000 for malicious arrest and attendant deprivation of liberty.

US$10,000 for malicious prosecution.

The total award would therefore be US$15,000.

In my view that figure is substantial enough to vindicate the plaintiff's dignity, reputation, and freedom, yet restrained enough to remain proportionate to the apparently limited arrest period and to distinguish this case from the far graver detention cases. It also sits sensibly between the Zimbabwean malicious prosecution comparator of US$20,000 in Econet and the much higher combined awards in Nherera, while respecting the South African caution in Tyulu, Seymour and De Klerk that quantum must be individualized and not mechanistic.

Accordingly, the plaintiff's claim succeeds.

It is declared that the defendant maliciously caused the plaintiff's arrest and maliciously prosecuted him.

Judgment is entered for the plaintiff against the defendant in the sum of US$15,000, made up as follows:

US$5,000 for malicious arrest and deprivation of liberty; and

US$10,000 for malicious prosecution.

Interest on the aforesaid sum shall run at the prescribed rate from the date of service of summons to the date of full payment.

The defendant shall pay the plaintiff's costs of suit.

MAMBARA J……..

IEG Musimbe and Partners, plaintiff's legal practitioners
Warara & Associates, defendant's legal practitioners